



All Done Sites

# Subscription Agreement

Website design, hosting and maintenance

Version 2026-09-17 · Prepared for Anelma le Roux

**In plain English:** This is the one agreement you sign with All Done Sites for our subscription website service. It covers ownership, payments, support, SEO, cancellation, transfer/buyout and liability.

## 1 Parties; Effective Date; Order Of Precedence

This Subscription Agreement ("Agreement") is entered into by and between All Done Sites ("Provider") and the entity or individual identified on the applicable order, proposal or checkout page ("Client"). This Agreement becomes effective on the date the Client accepts the order or signs the proposal (the "Effective Date"). Any order form or proposal (each, an "Order") is incorporated by reference. If there is a conflict between this Agreement and an Order, the Order governs only as to pricing, plan tier and term; otherwise this Agreement controls.

## 2 Definitions

**Agreement** This contract for subscription website services between Provider and Client.

**Branding** The Client's trademarks, logos, colour schemes, fonts and other brand assets supplied by Client.

**Content** Text, images, video, audio and other materials the Client supplies for inclusion on the Website.

**Website** The website and related software, templates, themes, components and configurations created or provided by Provider under the subscription.

**Small Content Update** Minor tasks such as swapping photos, editing text or adding a single new section.

**Additional Work** Changes outside a Small Content Update, including new pages, redesigns, custom features or integrations.

**Fair Market Value (FMV)** A good-faith valuation for purchasing the Website's code/design considering:

- time and skill required to recreate the deliverables
- prevailing hourly rates
- comparable market pricing
- third-party license buyouts and transfer costs

**Term** The initial and any renewal period of the subscription specified in the Order.

## 3 Scope Of Services

Provider will design, build and host the Website and provide maintenance and support during the Term according to the plan tier selected: Launch, Business or Premium. Most sites are ready in 7-14 days depending on complexity and timely Client approvals and content. Small Content Updates are included as part of ongoing maintenance; Additional Work is out of scope and will be quoted and billed separately.

Provider can connect Client's existing domain or assist with registration and set up professional email addresses. Provider may use third-party themes, plugins, fonts, analytics, CDNs or hosting. Licenses remain with Provider unless expressly assigned.

#### **4 Client Responsibilities**

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Client will (i) provide Branding and Content, accurate business information and timely feedback/approvals; (ii) warrant it owns or has rights to all supplied Content and Branding; and (iii) comply with applicable laws, including privacy and marketing laws (e.g. POPIA). Client is responsible for the accuracy and legality of all Content.

#### **5 Ownership; License; Access**

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Client owns its Branding and Content. Provider owns the Website design, code, templates, components, build scripts, configurations and other IP created or provided by Provider. While the subscription is active, Provider grants Client a limited, non-exclusive, non-transferable license to use and publicly display the Website hosted by Provider for Client's business purposes. Provider may restrict back-end access to protect platform integrity. Full code/database access is provided only upon Buyout under Section 10. The Website is not a work-for-hire and no assignment of Provider IP occurs unless and until Buyout is completed. The Website includes a discreet footer credit, "Built and maintained by All Done Sites", linking to <https://alldonesites.com>, while the subscription is active; removal can be arranged on request.

#### **6 Seo Levels**

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- Launch Plan – Basic SEO setup for launch.
- Business Plan – Solid SEO optimisation for good search visibility, without ongoing analytics or performance enhancements.
- Premium Plan – Enhanced SEO with ongoing analytics, reporting and performance improvements. No specific rankings are guaranteed.

#### **7 Term; Minimum Commitment; Cancellation**

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The standard minimum commitment is twelve (12) months. If Client is invited to an introductory one-month trial, Client may cancel at the end of that month with no further charges. Client may terminate early but remains liable for all remaining amounts due through the end of the twelve-month term. After the initial twelve-month term is satisfied and all amounts are paid, the Website's code and files will be transferred to Client at no additional charge, so the site is Client's to keep or move (subject to the third-party license limitations in Section 10). Client must give written notice of cancellation. Provider will coordinate a smooth transition of Client's Branding and Content.

#### **8 Fees; Invoicing; No Refunds; Taxes**

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Fees are due monthly in advance within the first five business days of each month unless otherwise stated in the Order. Out-of-scope work will be quoted and, once approved, billed at the then-current rates. Payments are non-refundable. Fees are exclusive of VAT and other taxes, which will be added where applicable. International Clients may be charged in their local currency; conversions are handled by the payment processor.

#### **9 Non-Payment; Suspension; Data Retention**

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If payment stops, the Website remains online for thirty (30) days. Thereafter the Website may be suspended and a backup will be retained for three additional months. If payment is not received within that retention period, the Website and associated files may be permanently deleted. Provider may charge a reactivation fee to restore suspended service.

## 10 Buyout; Transfer To Another Host

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After the initial twelve-month term is satisfied and all amounts are paid, the Website (design and code) will be transferred to Client at no additional charge, except for non-transferable third-party licenses (e.g. premium themes/plugins, fonts), which Client must license itself. Before the twelve-month term is completed, Client may instead elect to purchase the Website (design and code) at Fair Market Value (FMV) plus the cost of any Additional Work and third-party license buyouts/transfer fees.

FMV will consider the following:

- estimated hours to recreate deliverables multiplied by Provider's standard hourly rates
- comparable market values
- license replacement costs

Upon receipt of Buyout payment, Provider will deliver a reasonable export (e.g. code bundle and database dump where applicable) and provide limited transition assistance. Certain licenses (e.g. premium themes/plugins, fonts) may be non-transferable; Client must obtain its own licenses post-transfer.

## 11 Service Levels; Maintenance; Security

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Hosting, updates and security patches are included while the subscription is active. Critical issues affecting site availability will be addressed within twenty-four (24) hours; non-critical requests will be scheduled within a commercially reasonable timeframe. Provider maintains backups and monitoring on a best-effort basis. Internet, hosting and third-party failures may occur; Provider does not warrant uninterrupted or error-free service.

## 12 Content Standards; Compliance; Data Protection

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Client is solely responsible for all Content and for maintaining lawful privacy and terms pages where applicable. Client must comply with marketing and privacy laws (including POPIA) when collecting personal information. To the extent Provider processes personal information on Client's behalf, Provider acts as an operator under POPIA and will process such data only on Client's lawful instructions.

## 13 Additional Work; Changes In Scope

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Provider may in good faith determine that a request constitutes Additional Work or a scope change and may quote a revised recurring fee or a one-off project fee. Work will commence once approved.

## 14 Confidentiality

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Each party may receive confidential information ("Confidential Information") from the other. The receiving party will use the disclosing party's Confidential Information solely to perform under this Agreement and will protect it using reasonable measures. Exceptions include information that is public, independently developed, rightfully received from a third party or required to be disclosed by law.

## 15 Warranties; Disclaimers; Limitation Of Liability

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Each party warrants it has the authority to enter into this Agreement. Client warrants it owns or has obtained rights to all Content and Branding supplied. Except as expressly stated, the services are provided "as is" without warranties of any kind. Provider disclaims implied warranties of merchantability, fitness for a particular purpose and non-infringement. To the maximum extent permitted by law, Provider's aggregate liability arising out of or related to this Agreement will not exceed the amounts paid by Client to Provider in the twelve months immediately preceding the claim. In no event will Provider be liable for indirect, incidental, special, exemplary, punitive or consequential damages, or loss of profits, revenue, data or goodwill.

## **16 Force Majeure**

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Neither party will be liable for delays or failures due to events beyond its reasonable control, including acts of God, internet or hosting failures, civil disturbances, labour disputes or governmental actions.

## **17 Suspension; Termination For Cause**

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Provider may suspend or terminate the service for the following reasons:

- Non-payment
- Material breach not cured within ten (10) days after notice
- Unlawful, infringing or abusive use

Upon termination for cause, outstanding fees become immediately due.

## **18 Governing Law; Dispute Resolution**

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This Agreement is governed by the laws of the Republic of South Africa, without regard to conflict-of-law rules. The parties will first attempt to resolve disputes amicably; failing that, they will submit to mediation, and if unresolved, the courts of the Western Cape, South Africa will have exclusive jurisdiction.

## **19 Entire Agreement; Amendments; Assignment; Notices**

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This Agreement, together with any Orders, constitutes the entire agreement and supersedes prior proposals and understandings. Amendments must be in writing and signed. Client may not assign this Agreement without Provider's consent. Notices must be in writing and delivered by email or registered post to the addresses on the Order.

## A Schedule A · Order

This Order forms part of the Agreement. Where this Order and the Agreement differ on pricing, plan tier or term, this Order governs.

| ITEM                                    | DETAIL                                                                                                        | AMOUNT                |
|-----------------------------------------|---------------------------------------------------------------------------------------------------------------|-----------------------|
| Lounah Collective                       | Website build. Normal price R24,000.                                                                          | <b>R17,000</b>        |
| Baie Goeters                            | Website build. Normal price R14,000.                                                                          | <b>R10,000</b>        |
| Monarch Coffee Cartel                   | Online shop build. Normal price R32,000.                                                                      | <b>R22,000</b>        |
| Build total                             | All three sites together, normal price R70,000.                                                               | <b>R49,000</b>        |
| Monthly service — Lounah Collective     | Hosting, maintenance, updates, email and support. Ongoing.                                                    | <b>R1,200 / month</b> |
| Monthly service — Baie Goeters          | Hosting, maintenance, updates, email and support. Ongoing.                                                    | <b>R1,200 / month</b> |
| Monthly service — Monarch Coffee Cartel | The same, plus the online shop: orders, stock and payments. Ongoing.                                          | <b>R1,800 / month</b> |
| Monthly service, all three              | $R1,200 + R1,200 + R1,800 = R4,200$ per month, reduced to R3,900 while all three websites are taken together. | <b>R3,900 / month</b> |
| Build repayment                         | Option 1 only. Twelve monthly instalments, then it stops.                                                     | <b>R4,100 / month</b> |
| Option 1 total, first year              | R8,000 a month for twelve months, then R3,900 a month.                                                        | <b>R8,000 / month</b> |
| Option 2, build paid directly           | R22,050 on signing and R22,050 on completion, then R3,900 a month.                                            | <b>R44,100</b>        |

- No VAT is charged on any amount in this Order.
- No minimum term applies to this Order. Clause 7 of the Agreement is varied accordingly, and the Client may cancel at any time on written notice.
- Under Option 1 the Websites and their code transfer to the Client after twelve months of payment, per clause 7. Under Option 2 they transfer once the build is paid in full.
- Small content updates: two per website per month. Monarch Coffee Cartel additionally includes four product or stock updates per month.
- If a website is removed from this Order, the monthly service fee becomes the sum of the individual amounts above for the websites that remain. The reduced fee of R3,900 applies only while all three websites are taken together. Removing Lounah Collective or Baie Goeters leaves R3,000 per month; removing Monarch Coffee Cartel leaves R2,400 per month.
- Payment gateway fees charged by Paystack on each sale are for the Client's account and are not included in the amounts above.
- Additional mailboxes on the Client's own domain are R40 per month each.
- Additional websites may be added at R1,200 per month each, or R1,800 per month where the website sells online.

◆ **Signatures**

By signing below, each party agrees to be bound by this Agreement and the Order in Schedule A.

**CLIENT**

BUSINESS NAME

Anelma le Roux

SIGNED BY (FULL NAME)

CAPACITY

SIGNATURE

DATE

PLACE

**PROVIDER**

BUSINESS NAME

All Done Sites

SIGNED BY (FULL NAME)

Jonathan Avis

CAPACITY

Owner

SIGNATURE

DATE

PLACE